

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 1510, by substituting the attached floor substitute (Request #3824) for the title, enacting clause, and entire body of the measure.

Submitted by:

Walter Hamilton
Senator Hamilton

I hereby grant permission for the floor substitute to be adopted.

Scott Green
Senator Green, Chair (required)

Tom Woods
Senator Woods

Senator Boren
Senator Dossett

Senator Frix
Senator Jett

Senator Paxton, President Pro Tempore

Senator Kern

Senator McIntosh

Senator Murdock

Senator Rader

Senator Thompson

Senator Daniels, Majority Floor Leader

Note: Energy committee majority requires six (6) members' signatures.

Hamilton-CN-FS-SB1510

3/17/2026 2:10 PM

(Floor Amendments Only)

Date and Time Filed: 3/23/26 3:13pm gd

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 1510

By: Hamilton of the Senate

and

Turner of the House

FLOOR SUBSTITUTE

[energy - property restoration - financial assurance
- effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 17 O.S. 2021, Section 160.14, is
amended to read as follows:

Section 160.14. A. The owner of a wind energy facility shall
be responsible, at its expense, for the proper decommissioning of
the facility upon abandonment or the end of the useful life of the
commercial wind energy equipment in the wind energy facility.

B. Proper decommissioning of a wind energy facility shall
include:

1. Removal of wind turbines, towers, buildings, cabling,
electrical components, foundations, and any other associated
facilities, to a depth ~~of thirty (30) inches below grade~~ that

restores the property to, as near as reasonably possible, the condition of the property prior to the establishment of the wind energy facility; and

2. Disturbed earth being graded and reseeded or otherwise restored to substantially the same physical condition as existed prior to the construction of the wind energy facility by the owner, excluding roads, unless the landowner specifically requests in writing that the roads or other land surface areas be restored.

C. The decommissioning of the wind energy facility, or individual pieces of commercial wind energy equipment, shall be completed as follows:

1. By the owner of the wind energy facility within twelve (12) months after abandonment or the end of the useful life of the commercial wind energy equipment in the wind energy facility; and

2. If the owner of the wind energy facility fails to complete the decommissioning within the period prescribed in paragraph 1 of this subsection, the Corporation Commission shall take such measures as are necessary to complete the decommissioning.

D. A lease or other agreement between a landowner and an owner of a wind energy facility may contain provisions for decommissioning that are either more or less restrictive than provided for in this section.

SECTION 2. AMENDATORY 17 O.S. 2021, Section 160.15, is amended to read as follows:

1 Section 160.15. A. The owner of a wind energy facility shall
2 submit to the Corporation Commission evidence of financial security
3 to cover the anticipated costs of decommissioning the wind energy
4 facility. For a wind energy facility or portion thereof which
5 reaches the commercial generation date prior to December 31, 2016,
6 the evidence of financial security shall be submitted after the
7 fifteenth year of operation of the facility. For a wind energy
8 facility or portion thereof which reaches the commercial generation
9 date on or after December 31, 2016, the evidence of financial
10 security shall be submitted by the fifth year of operation of the
11 facility. Evidence of financial security ~~may~~ shall be in the form
12 of cash or a surety bond, ~~collateral bond, parent guaranty, cash,~~
13 ~~cashier's check, certificate of deposit, bank joint custody receipt~~
14 ~~or other approved negotiable instrument as established in rules~~
15 ~~promulgated by the Commission~~ underwritten by surety companies
16 listed as certified insurers acceptable as sureties and reinsurers
17 on federal bonds as published in the Federal Register, Treasury
18 Circular 570, latest revision.

19 B. 1. For a wind energy facility which reaches the commercial
20 generation date prior to December 31, 2016, the evidence of
21 financial security shall be accompanied by an estimate of the total
22 cost of decommissioning, minus the salvage value of the equipment,
23 prepared by a professional engineer licensed in this state. The
24 amount of the evidence of financial security shall be either:

- a. the estimate of the total cost of decommissioning minus the salvage value of the equipment which shall be submitted to the Commission in the fifteenth year of the project and every tenth year thereafter for the life of the wind energy facility, or
- b. one hundred twenty-five percent (125%) of the estimate of the total cost of decommissioning which shall be submitted to the Commission in the fifteenth year of the project.

2. For a wind energy facility which reaches the commercial generation date on or after December 31, 2016, the evidence of financial security shall be accompanied by an estimate of the total cost of decommissioning and an estimate of the salvage value of the equipment prepared by a professional engineer licensed in this state. The amount of the evidence of financial security shall be one hundred twenty-five percent (125%) of the estimate of the total cost of decommissioning, minus the salvage value of the equipment, which shall be submitted to the Commission by the fifth year after reaching the commercial generation date and thereafter upon request by the Commission.

C. If the owner of a wind energy facility fails to submit the information with the Commission as is required by this section, the owner shall be subject to an administrative penalty not to exceed One Thousand Five Hundred Dollars (\$1,500.00) per day.

1 D. In the event of a transfer of ownership of a wind energy
2 facility, the evidence of financial security posted by the
3 transferor shall remain in place and shall not be released until
4 such time as evidence of financial security meeting the requirements
5 of this section is posted by the new owner of the wind energy
6 facility and deemed acceptable by the Commission.

7 E. The provisions of this section shall apply to any wind
8 energy facility or portion thereof entering into or renewing a power
9 purchase agreement (PPA) for the energy generated by the wind energy
10 facility on or after January 1, 2011. If a wind energy facility
11 does not sell its energy under a power purchase agreement, the
12 provisions of this section shall apply to the wind energy facility
13 or portion thereof which construction commences on or after January
14 1, 2011.

15 SECTION 3. AMENDATORY Section 6, Chapter 25, O.S.L. 2025
16 (17 O.S. Supp. 2025, Section 820.5), is amended to read as follows:

17 Section 820.5. A. A solar power facility agreement shall
18 provide that the grantee obtain and deliver to the landowner
19 evidence of financial assurance that conforms to the requirements of
20 this section to secure the performance of the grantee's obligation
21 to remove the grantee's solar power facilities located on the
22 landowner's property as described by Section ~~5 of this act~~ 820.4 of
23 this title. ~~Acceptable forms~~ Evidence of financial assurance
24 ~~include a parent company guaranty with a minimum investment grade~~

~~credit rating for the parent company issued by a major domestic credit rating agency, a letter of credit, a bond, or another form of financial assurance reasonably acceptable to the landowner~~ shall be in the form of cash or a surety bond underwritten by surety companies listed as certified insurers acceptable as sureties and reinsurers on federal bonds as published in the Federal Register, Treasury Circular 570, latest revision.

B. The amount of the financial assurance ~~must~~ shall be ~~at~~ either:

1. At least equal to the estimated amount by which the cost of removing the solar power facilities from the landowner's property and restoring the property to, as near as reasonably possible, the condition of the property as of the date the agreement begins exceeds the salvage value of the solar power facilities, less any portion of the value of the solar power facilities pledged to secure outstanding debt; or

2. One hundred twenty-five percent (125%) of the estimate of the total cost of decommissioning.

C. The agreement shall provide that:

1. The estimated cost of removing the solar power facilities from the landowner's property and restoring the property to, as near as reasonably possible, the condition of the property as of the date the agreement begins and the estimated salvage value of the solar

1 power facilities ~~must~~ shall be determined by an independent, third-
2 party professional engineer licensed in this state;

3 2. The grantee shall deliver to the landowner an updated
4 estimate, prepared by an independent, third-party professional
5 engineer licensed in this state, of the cost of removal and the
6 salvage value:

7 a. on or before the tenth anniversary of the commercial
8 operations date of the solar power facilities, and

9 b. at least once every five (5) years after the
10 commercial operations date of the solar power
11 facilities for the remainder of the term of the
12 agreement; and

13 3. The grantee is responsible for ensuring that the amount of
14 the financial assurance remains sufficient to cover the amount
15 required by subsection B of this section, consistent with the
16 estimates required by this subsection.

17 D. The grantee is responsible for the costs of obtaining
18 financial assurance described by this section and costs of
19 determining the estimated removal costs and salvage value.

20 E. The agreement ~~must~~ shall provide that the grantee shall
21 deliver the financial assurance not later than the earlier of:

22 1. The date the solar power facility agreement is terminated;

23 or
24

1 2. The twentieth anniversary of the commercial operations date
2 of the solar power facilities located on the landowner's leased
3 property.

4 F. For purposes of this section, "commercial operations date"
5 means the date on which the solar power facilities are approved for
6 participation in market operations by a regional transmission
7 organization and does not include the generation of electrical
8 energy or other operations conducted before that date for purposes
9 of maintenance and testing.

10 G. The grantee may not cancel financial assurance before the
11 date the grantee has completed the grantee's obligation to remove
12 the grantee's solar power facilities located on the landowner's
13 property in the manner provided by ~~this act~~ the Commercial Solar
14 Facility Decommissioning Act, unless the grantee provides the
15 landowner with replacement financial assurance at the time of or
16 before the cancellation. In the event of a transfer of ownership of
17 the grantee's solar power facilities, the financial security
18 provided by the grantee shall remain in place until the date
19 evidence of financial security meeting the requirements of ~~this act~~
20 the Commercial Solar Facility Decommissioning Act is provided to the
21 landowner.

22 SECTION 4. This act shall become effective November 1, 2026.
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24 60-2-3824 CN 3/23/2026 3:28:52 PM

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